

nineteen hundred and seven, but the Secretary of State may appoint a later date (not being later than the first day of January one thousand nine hundred and eight) for any special provision of the Act to come into operation, and, if a later date is so appointed, that special provision shall not come into operation until that later date.

SCHEDULE.

ENACTMENTS REPEALED.

Section 7

Session and Chapter	Short Title.	Extent of Repeal
35 & 36 Vict. c. 77.	The Metalliferous Mines Regulation Act, 1872.	Section eleven from the beginning to "injured respectively."
50 & 51 Vict. c. 58.	The Coal Mines Regulation Act, 1887.	Section thirty-five, subsection one.
57 & 58 Vict. c. 28.	The Notice of Accidents Act, 1894.	Section one, subsection three.
63 & 64 Vict. c. 27.	The Railway Employment (Prevention of Accidents) Act, 1900.	Section thirteen, subsection three.
1 Edw. 7. c. 22.	The Factory and Workshop Act, 1901.	Section nineteen.

CHAPTER 54.

An Act to improve the position of Tenants of certain Houses, Shops, or other Buildings in Ireland.

[21st December 1906]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

COMPENSATION FOR IMPROVEMENTS.

tenant's
right to com-
pensation for
improvements.

1.—(1) Subject to the provisions of this Act, a tenant of a holding to which this Act applies may, on quitting his holding, claim, in the prescribed manner, compensation to be paid by the landlord in respect of all improvements on his holding made by him or his predecessors in title which, at the date of such claim

add to the letting value of the holding, and are suitable to the character of the holding, and have not diminished the letting value of any other property of the same landlord. Provided always that the sum to be awarded as compensation for any improvement shall, in no case, exceed the capitalised value of such addition to the letting value of such holding as the Court shall determine to be the direct result of such improvement.

(2) In the event of any dispute between a landlord and a tenant with regard to a claim for compensation under this section, such dispute, unless the parties agree to refer it to arbitration, shall be determined by the court in accordance with the provisions of this Act, and the court, in awarding such compensation to the tenant in respect of such improvements, may, in reduction of the tenant's claim, take into consideration the time during which the tenant may have enjoyed the advantage of the improvements and the rent at which such holding had been held, and any benefits which the tenant may have received from his landlord in consideration expressly or impliedly of the improvements made.

2.—(1) A tenant of a holding who is quitting it shall not be entitled to any compensation in respect of any improvement when it appears to the court that the landlord has made an offer, which in the opinion of the court is reasonable, of a new tenancy or of the continuance or renewal of the tenancy, with the right to the tenant to dispose of his interest therein, and the tenant has not accepted the offer.

Limitation of
tenant's right
in certain cases

(2) A tenant shall not be entitled to any compensation in respect of any improvement made either before or after the passing of this Act which the landlord had undertaken to make, except in cases where the landlord has failed to perform his undertaking within the time agreed on between him and the tenant, or within a time which, in the opinion of the court, is a reasonable time.

(3) A tenant shall not be entitled to any compensation in respect of any improvement made, whether before or after the passing of this Act, in contravention of a contract in writing not to make the improvement.

(4) A tenant shall not be entitled to any compensation in respect of any improvement made, whether before or after the passing of this Act, in pursuance of a contract entered into for valuable consideration, including a building lease.

(5) A tenant shall not be entitled to claim compensation for any improvement made before the passing of this Act, except permanent buildings, unless made within ten years before the date of such claim.

3.—(1) Where a tenant of a holding proposes after the passing of this Act to make improvements in his holding, he shall send to his landlord notice, in the prescribed manner, of his intention to make such improvements, together with a specification and value of the proposed improvements, and if the

Landlord's
right to object

landlord or his known agent does not, within three months after the receipt of the notice, send notice of objection, in the prescribed manner, to the tenant, the tenant may proceed to make the proposed improvements; but, if the landlord or his agent sends such notice objecting to all or any of the improvements, the tenant may, in the prescribed manner, apply to the court, and the court may, if satisfied that the improvement will add to the letting value of the holding, and is reasonable and suitable to the character thereof, and will not diminish the letting value of any other property of the same landlord, sanction all or any of the proposed improvements, making such modifications in the specification or plan as the court thinks fit.

(2) Provided always that the landlord may, at any time after receiving the tenant's notice or during the hearing by the court or after the decision of the court, undertake to execute the improvement himself, and may execute the same in a reasonable and proper manner, and charge the tenant with a sum not exceeding five pounds per centum per annum on the outlay incurred in executing the improvement, or at the election of the tenant not exceeding such annual sum payable for a period of twenty-five years as will repay such outlay in the said period with interest at the rate of three pounds per centum per annum. Any annual sum charged against a tenant under this subsection shall be recoverable as rent.

(3) A tenant shall not be entitled to claim compensation in respect of any improvements made after the passing of this Act unless he has given notice thereof under this section, and (in case the landlord has given notice of objection thereto) the improvements have been sanctioned by the court: Provided that where any sanitary authority under the Public Health (Ireland) Acts, 1878 to 1900, or the Housing of the Working Classes (Ireland) Acts, 1890 to 1896, requires the owner or occupier to make any improvements or execute any works in the holding, the occupier, upon the landlord's default, may make or execute (subject to the provisions of the preceding subsection) such improvements or works, and such improvements or works shall be deemed to be improvements within the meaning of this Act.

conditions of
compensation.

4. Where, in the case of any holding, there are several persons standing in the relation to each other of landlord and tenant, the following provisions shall apply:—

Any mesne landlord against whom a claim arises under this Act shall, at the end of his term, be entitled to claim compensation against his immediate landlord in like manner and on the same conditions as if he had himself made the improvements in question:

A mesne landlord shall not be entitled to make a claim under this section unless he has, within the time and in the manner prescribed, sent to his immediate landlord or his agent copies of all documents relating to proposed improvements or claims which have been sent to him.

in pursuance of the last preceding section. The said immediate landlord shall thereupon have, in addition to the mesne landlord, the powers conferred by or in pursuance of the last preceding section in like manner as if he were the immediate landlord of the occupying tenant, and shall, in the manner and to the extent prescribed, be bound by the proceedings.

5.—(1) Where the landlord, without good and sufficient cause, terminates or refuses to grant a renewal of the tenancy, or it is proved that an increase of rent is demanded from the tenant as the result of improvements which have been effected at the cost of such tenant, and for which he has not, either directly or indirectly, received an equivalent from the landlord, and such demand results in the tenant quitting the holding, the tenant upon quitting the holding shall, in addition to the compensation (if any) to which he may be entitled in respect of improvements, and notwithstanding any agreement to the contrary, be entitled to compensation for the loss of goodwill and the expense which, by reason of his quitting the holding, he sustains or incurs upon or in connection with the removal of his goods, implements, produce, or stock.

Compensation for unreasonable increase.

In the event of any difference arising as to any matter under this section, the difference shall, in default of agreement, be settled by the court.

(2) This section shall apply only to houses, shops, and other buildings occupied wholly or to a substantial extent for trade or business purposes, and which are held (a) under tenancies from year to year created after the passing of this Act, or (b) under leases made after the passing of this Act for terms of less than thirty-one years, or for a life or lives, or (c) under contracts of tenancy existing at the passing of this Act where the rent of the holding is under one hundred pounds per annum.

6. Out of any moneys payable to a tenant under this Act, and sums due to the landlord from the tenant or his predecessors in title in respect of rent, or in respect of any deterioration of the holding arising from any non-observance on the part of the tenant of any express or implied covenant or agreement, may be deducted by the landlord, and also any taxes payable by the tenant due in respect of the holding and not recoverable by him from the landlord.

Sums to be deducted by the landlord.

7. A tenant who is evicted for breach of any condition of his tenancy shall not be entitled to any compensation for disturbance under this Act.

Exceptions.

8. This Act shall not apply to any holding let to the tenant for his continuance in any office, appointment, or employment, or for the temporary convenience, or to meet a temporary necessity, either of the landlord or tenant, provided that any such letting made after the passing of this Act shall be by

Exclusion of certain holdings.

contract in writing which shall express the purpose for which such letting is made.

Prohibition of
contracting.
11.

9. Any contract (other than a contract either to make or not to make an improvement) made whether before or after the passing of this Act, by virtue of which a tenant would be directly or indirectly, deprived of his right to obtain compensation under this Act, shall be void unless the court adjudicating upon a claim for compensation by such tenant shall, having regard to all the circumstances of the case, be of opinion that such contract was reasonable and that it was entered into by the parties without any direct or indirect compulsion.

Jurisdiction of
the county
court.

10.—(1) The court for the determination of all matters under this Act shall be the county court having jurisdiction where the holding is situate.

(2) Subject to the provisions of this Act, rules for regulating proceedings in a county court under this Act may be made in accordance with the County Courts (Ireland) Acts, 1851 to 1889, and such rules may (inter alia) provide for—

- (a) the manner in, and the time within, which notices under this Act shall be served;
- (b) the manner in which notices, orders, and other documents under this Act may be authenticated;
- (c) (subject to the provisions of this Act) the particulars to be inserted in any notice to any person or in any application to, or order made by, the court under this Act.

(3) Any rules under this section shall be made after consultation with, or notice of consultation sent to, the President of the Incorporated Law Society of Ireland.

Appeals.

11.—(1) Any person aggrieved by any determination of the county court under this Act may appeal either—

- (a) to the judge of assize or a judge of the High Court, as the case may be, in accordance with the provisions of the County Courts (Ireland) Acts, 1851 to 1889, relating to appeals in the case of ordinary civil bills; or
- (b) to the Court of Appeal in accordance with rules of the Supreme Court;

Provided that, if in any proceedings appeals are taken both to the judge of assize or a judge of the High Court and to the Court of Appeal, the appeal shall be heard together by such judge, and a further appeal may be taken from his determination to the Court of Appeal in accordance with rules of the Supreme Court.

Proceedings in
respect of
claims.
12. 34 Vict.
16.

12. Sections eighteen, twenty-one, twenty-three, twenty-six and twenty-seven of the Landlord and Tenant (Ireland) Act, 1870, shall, so far as they are applicable, apply to proceedings in respect of claims under this Act; and the said sections twenty-three shall have effect as if "county court" were substituted therein for "court of assize."

the court by the said section twenty-seven shall, on the application of a limited owner, be performed as well where compensation is awarded by the court as where the amount of compensation is agreed upon.

13. The landlord of a holding, or any person authorised by him, may at all reasonable times enter on the holding, or any part of it, for the purposes of this Act. Right of entry

14. Capital money arising under the Settled Land Act, 1882, may be applied in payment of any moneys expended and costs incurred by a landlord under or in pursuance of this Act in or about the execution of any improvement, as for an improvement authorised by the said Settled Land Act; and such money may also be applied in discharge of any charge created on a holding under or in pursuance of this Act in respect of any such improvement as aforesaid, as in discharge of an encumbrance authorised by the said Settled Land Act to be discharged out of such capital money. Application of capital money under 45 & 46, Act No. 35.

15. Where the landlord is a person entitled to receive the rents and profits of any holding as trustee, or in any character otherwise than for his own benefit, the amount due from such landlord in respect of compensation under this Act shall be charged and recovered as follows, and not otherwise (that is to say):— Provision in case of trustees.

- (1) The amount so due shall not be recoverable personally against such landlord, nor shall he be under any liability to pay such amount, but the same shall be a charge on and recoverable against the holding only;
- (2) Such landlord shall, either before or after having paid to the tenant the amount due to him, be entitled to obtain from the county court a charge on the holding to the amount of the sum required to be paid or which has been paid, as the case may be, to the tenant.
- (3) If such landlord neglect, or fail within one month after the tenant has quitted his holding, to pay to the tenant the amount due to him, then after the expiration of such one month the tenant shall be entitled to obtain from the county court in favour of himself, his executors, administrators, and assigns, a charge on the holding to the amount of the sum due to him, and of all costs properly incurred by him in obtaining the charge and in raising the amount due thereunder.
- (4) The court shall, on proof of the tenant's title to have a charge made in his favour, make an order charging the holding with payment of the amount of the charge, including costs, in the manner and form as in case of a charge which a landlord is entitled to obtain.

16. Any company now or hereafter incorporated by Parliament, and having power to advance money for the improvement of land, may take an assignment of any charge made by a county As to the mode of assignment

court under the provisions of this Act, upon such terms and conditions as may be agreed upon between such company and the person entitled to such charge; and such company may assign any charge so acquired by them to any person or person whomsoever.

Holdings to which Act applies.

17. The holdings to which the provisions of this Act relating to compensation for improvements apply are houses, shops, and other buildings situate in urban districts, towns, or villages, and occupied either for residential or for business purposes, or partly for residential and partly for business purposes.

Definitions.

18. The following expressions in this Act shall, unless the context otherwise requires, have the meanings herein-after respectively assigned to them (that is to say):—

& 24 Vict.
154.

"Landlord" shall have the same meaning as in section one of the Landlord and Tenant Law Amendment Act, Ireland, 1860;

& 42 Vict.
52.

"Owner" shall have the same meaning as in section two of the Public Health (Ireland) Act, 1878; ~~and~~

"Tenant" shall mean any person entitled in actual possession to the holding under any contract of tenancy for a year or for any longer period, whether the interest of such tenant shall have been acquired by original contract, lawful assignment, bequest, devise, or act and operation of law;

"Lease" means a lease, under-lease, assignment operating as a lease or under-lease, or an agreement for such lease, under-lease, or assignment;

"Rules" includes forms;

"Prescribed" means prescribed by rules of the county court;

& 45 Vict.
49.

The expression "predecessor in title" shall have the same meaning as in the Landlord and Tenant (Ireland) Act, 1870, as amended by section seven of the Land Law (Ireland) Act, 1881.

Registration of improvements.

19. Improvements by a landlord or tenant on any holding may be registered in the manner provided by section six of the Landlord and Tenant (Ireland) Act, 1870, but the court in which the improvements may be registered shall be the court within the meaning of this Act, and the said section for the purposes of this section shall be deemed to be incorporated in this Act.

Commencement of Act.

20. This Act shall come into operation on the first day of January nineteen hundred and seven.

Short title.

21. This Act may be cited as the Town Tenants (Ireland) Act, 1906.